

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

Government Agent/District
Secretary,
Anuradhapura.

PLAINTIFF

Court Appeal Case No:
CA(PHC) 0018/21

VS

**North Central Province High
Court Case No:**
NCP/PHC/ANP/RV/04/2020

Chandra P. Withana,
No. 04, Harischandra Mawatha,
Anuradhapura.

**Anuradhapura Magistrate's
Court Case No: 24102**

RESPONDENT

AND BETWEEN

Chandra P. Withana,
No. 04, Harischandra Mawatha,
Anuradhapura.

RESPONDENT-PETITIONER

VS

Government Agent/District
Secretary,
Anuradhapura.

PLAINTIFF-RESPONDENT

AND NOW BETWEEN

Chandra P. Withana,
No. 04, Harischandra Mawatha
Anuradhapura.

RESPONDENT-PETITIONER-
APPELLANT

VS

Government Agent/District
Secretary,
Anuradhapura.

PLAINTIFF-RESPONDENT-
RESPONDENT

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Dr. Sunil Cooray with Gayashani Perera
for the Respondent-Petitioner-Appellant

S. Dunuwila SC. For the Plaintiff-
Respondent-Respondent.

Written Submissions
of the Respondent
-Petitioner-Appellant
tendered on

: 28.06.2023

Written Submissions
of the Plaintiff

-Respondent-Respondent

tendered on : 08.09.2026

Decided on : 25.09.2026

K. M. S. DISSANAYAKE, J.

Instant appeal arises from an order dated 27.01.2021 (hereinafter called and referred to as “the Order”) made by the learned High Court Judge of the North Central Province holden in Anuradhapura (hereinafter called and referred to as “the learned High Court Judge”) dismissing an application in revision preferred to it by the Respondent-Petitioner-Appellant (hereinafter called and referred to as “the Appellant”) praying *inter-alia*, for the setting aside of the order dated 14.02.2020 made by the learned Magistrate of Anuradhapura (hereinafter called and referred to as “the MC order”) in respect of an application for ejectment made to it by the Plaintiff-Respondent-Respondent-Government Agent/District Secretary of Anuradhapura being the Competent Authority (hereinafter called and referred to as “the Respondent”) under and in terms of section 6 of the Government Quarters (Recovery of Possession) Act No. 07 of 1969 as amended (hereinafter called and referred to as “the Act”), on the grounds urged in paragraph 7(i) to (iv) of the petition dated 27.02.2020 furnished by the Appellant to the High Court of the North Central Province holden in Anuradhapura (hereinafter called and referred to as “the High Court”) along with her application in revision.

When this matter came on before us for hearing, Counsel desired this Court to dispose of this matter on the strength of the written submissions and the instant appeal will be disposed of, accordingly.

The facts relevant and material to the instant appeal as can be gathered from the petition of appeal may be briefly, set out as follows;

The Respondent-Government Agent/District Secretary of Anuradhapura being the Competent Authority had made an application for ejectment to the Magistrate Court of Anuradhapura in case bearing No. 24102 under and in terms of the provisions of Section 6 of the Act praying for the recovery of

possession of the Government Quarter as morefully, described in the application for ejectment (hereinafter called and referred to as “the Government Quarter”) and for the ejectment of the Appellant and his dependents if any, therefrom. Even though Act contains no provision whatsoever, which requires the issuance of notice of the application for ejectment on the person sought to be ejected from a Government Quarter, the learned Magistrate had nevertheless, proceeded to issue notices of the application for ejectment on the Appellant on a significant number of occasions but, the Appellant had failed to respond to the notices so issued on him by Court, despite the fact that she had been served with notices by way of substituted service as reported to Court by the Fiscal and in consequence, the learned Magistrate of Anuradhapura had made order issuing a writ of possession to the Fiscal requiring and authorizing him to deliver possession of the Government Quarter to the competent authority and to eject the Appellant and her dependents if any, therefrom. Being aggrieved by the MC order, the Appellant had invoked the extra-ordinary revisionary jurisdiction of the High Court seeking to revise and set aside it. The learned High Court Judge had by the HC order, dismissed the application in revision for the reasons explicitly, stated therein. Hence, the instant appeal therefrom.

As is discernible from a careful scrutiny of the grounds of appeal urged in paragraph 6 (i) to (iv) of the petition of appeal, the contentions so advanced by the Appellant in support of the instant appeal, are mainly, four-fold, namely;

- 1) The Respondent is not the competent authority within the meaning of section 9 of the Act;
- 2) The Quarter in question is not a Government Quarter within the meaning of the Act but, a Quarter belonging to the North Central Provincial Council in terms of the pedigree pleaded in his showing cause;
- 3) The learned High Court Judge has violated the doctrine of ‘Audi Alterm Partem’.

4) Consideration of extraneous and irrelevant facts in the HC order.

They may now, be examined separately for convenience and clarity.

1) The Respondent is not the competent authority within the meaning of section 9 of the Act.

It may now, be examined.

Sections 6(4) of the Act enacts that, “Every application for ejectment shall be **conclusive evidence of the facts stated therein.**”[Emphasis is mine]

What then, is conclusive evidence or conclusive proof as envisaged by section 6(4) of the Act?.

In terms of section 4(3) of the Evidence Ordinance, the phrase “conclusive proof” is defined as follows;

“When one fact is declared by this Ordinance to be conclusive proof of another, the court shall on proof of the one fact regard the other as proved, and shall not allow evidence to be given for the purpose of disproving it.”

The Respondent being the competent authority has stated in his application for ejectment forwarded to the Magistrate Court of Anuradhapura that he is the competent authority within the meaning of the Act.

Hence, it is conclusive evidence and/or conclusive proof within the meaning of section 6(4) of the Act to be read with section 4(3) of the Evidence Ordinance that the Respondent is the competent authority within the meaning of the Act and that Court shall not allow evidence to be given for the purpose of disproving it in terms of section 4(3) of the Evidence Ordinance.

Hence, the Appellant is not entitled to raise such a defence to the application for ejectment made by the Respondent being competent authority to the Magistrate Court of Anuradhapura that **the Respondent is not the competent authority within the meaning of section 9 of the Act** as rightly, held by the learned High Court Judge.

I would therefore, hold that the ground of appeal so urged by the Appellant in support of the instant appeal cannot sustain in law and therefore, it ought to be rejected as rightly, held by the learned High Court Judge.

2) The Quarter in question is not a Government Quarter within the meaning of the Act but, a Quarter belonging to the North Central Provincial Council.

It may now, be examined.

As enumerated above, sections 6(4) of the Act enacts that, “Every application for ejectment shall be **conclusive evidence of the facts stated therein.**”[Emphasis is mine]

As enumerated above, section 4(3) of the Evidence Ordinance defines the phrase “conclusive proof” as follows;

“When one fact is declared by this Ordinance to be conclusive proof of another, the court shall on proof of the one fact regard the other as proved, and shall not allow evidence to be given for the purpose of disproving it.”

The Respondent being the competent authority has stated in his application for ejectment forwarded to the Magistrate Court of Anuradhapura that the Quarter in question is a Government Quarter within the meaning of the Act.

Hence, it is conclusive evidence and/or conclusive proof within the meaning of section 6(4) of the Act to be read with section 4(3) of the Evidence Ordinance that the Quarter in question is a Government Quarter within the meaning of the Act and that Court shall not allow evidence to be given for the purpose of disproving it in terms of section 4(3) of the Evidence Ordinance.

Hence, the Appellant is not entitled to raise such a defence to the application for ejectment made by the Respondent being competent authority to the Magistrate Court of Anuradhapura that **the Quarter in question is not a Government Quarter within the meaning of the Act** as rightly, held by the learned High Court Judge.

I would therefore, hold that the ground of appeal so urged by the Appellant in support of the instant appeal cannot sustain in law and therefore, it ought to be rejected as rightly, held by the learned High Court Judge.

3) The learned High Court Judge has violated the doctrine of ‘Audi Alterm Partem’.

A careful scrutiny of the Act clearly, shows that it contains no provision whatsoever, requiring that a Respondent against whom an application for ejectment is made should be heard in opposition to the application for ejectment under section 6 of the Act.

However, as observed by me elsewhere in this judgement, the learned Magistrate of Anuradhapura had nevertheless, proceeded to issue notices of the application for ejectment on the Appellant on a significant number of occasions but, the Appellant had failed to respond to the notices so issued on him by Court, despite the fact that she had been served with notices by way of substituted service as reported to Court by the Fiscal and in consequence, the learned Magistrate of Anuradhapura had made order issuing a writ of possession to the Fiscal requiring and authorizing him to deliver possession of the Government Quarter to the competent authority and to eject the Appellant and her dependents if any, therefrom.

Hence, the learned High Court Judge was entirely, right in his observations made in the HC order that, the Appellant was not entitled to be heard against the application for ejectment forwarded by the Respondent being the competent authority to the Magistrate Court of Anuradhapura.

Besides, section 7(3) of the Act confers upon a person who claims to have been unlawfully ejected from the Government Quarters under the provisions of the Act, a right to institute an action for damages or other relief.

Hence, it is to be observed that the Act itself, embodies the principle of Natural Justice and as such there is an alternative statutory remedy available to the Appellant, if aggrieved by the order of the learned Magistrate of Anuradhapura to institute an action for damages or other relief.

In the circumstances, it cannot be said that the learned High Court Judge had violated the principles of Natural Justice by failing to appreciate that the learned Magistrate of Anuradhapura had not given an opportunity to the Appellant to be heard in opposition to the application for ejectment.

I would therefore, hold that the next ground of appeal so urged by the Appellant in support of the instant appeal cannot sustain in law and therefore, it ought to be rejected.

4) Consideration of extraneous and irrelevant facts in the HC order.

In view of my findings in relation to **1)**, **2)** and **3)** above, it cannot in any manner, be said that the learned High Court Judge had considered extraneous and irrelevant facts in coming to the HC order.

I would therefore, hold that the next ground of appeal so urged by the Appellant in support of the instant appeal cannot sustain in law and therefore, it ought to be rejected.

Hence, I would see no error whatsoever, in the HC order appealed from.

In view of all the above circumstances, I would hold that, appeal is not entitled to succeed both in fact and law.

In the result, I would proceed to dismiss the instant appeal with costs fixed at Rs. 50,000/-.

I would thus, affirm the HC order appealed from.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL